

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 COMMITTEE SUBSTITUTE
5 FOR ENGROSSED
6 SENATE BILL NO. 1256

By: Hines of the Senate

and

Harris of the House

8
9
10
11 COMMITTEE SUBSTITUTE

12 An Act relating to bail; amending 22 O.S. 2021,
13 Section 1105, as amended by Section 1, Chapter 172,
14 O.S.L. 2025 (22 O.S. Supp. 2025, Section 1105), which
15 relates to defendant discharged on giving bail;
16 authorizing certain court to order ignition interlock
17 device for certain defendants; and providing an
18 effective date.

18 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

19 SECTION 1. AMENDATORY 22 O.S. 2021, Section 1105, as
20 amended by Section 1, Chapter 172, O.S.L. 2025 (22 O.S. Supp. 2025,
21 Section 1105), is amended to read as follows:

22 Section 1105. A. Except as otherwise provided by this section,
23 upon the allowance of bail and the execution of the requisite
24 recognizance, bond, or undertaking to the state, the magistrate,

1 judge, or court shall, if the defendant is in custody, make and sign
2 an order for discharge. The court, in its discretion, may prescribe
3 by court rule the conditions under which the court clerk or deputy
4 court clerk, or the sheriff or deputy sheriff, may prepare and
5 execute an order of release on behalf of the court.

6 B. No police officer or sheriff may release a person arrested
7 for a violation of an ex parte or final protective order as provided
8 in Sections 60.2 and 60.3 of this title, or arrested for an act
9 constituting domestic abuse as specified in Section 644 of Title 21
10 of the Oklahoma Statutes, or arrested for any act constituting
11 domestic abuse, stalking, or harassment as defined by Section 60.1
12 of this title, or arrested for an act constituting domestic assault
13 and battery or domestic assault and battery with a deadly weapon
14 pursuant to Section 644 of Title 21 of the Oklahoma Statutes,
15 without the violator appearing before a magistrate, judge, or court.
16 To the extent that any of the following information is available to
17 the court, the magistrate, judge, or court shall consider, in
18 addition to any other circumstances, before determining bond and
19 other conditions of release as necessary for the protection of the
20 alleged victim, the following:

21 1. Whether the person has a history of domestic violence or a
22 history of other violent acts;

23 2. The mental health of the person;

24

1 3. Whether the person has a history of violating the orders of
2 any court or governmental entity;

3 4. Whether the person is potentially a threat to any other
4 person;

5 5. Whether the person has a history of abusing alcohol or any
6 controlled substance;

7 6. Whether the person has access to deadly weapons or a history
8 of using deadly weapons;

9 7. The severity of the alleged violence that is the basis of
10 the alleged offense including, but not limited to:

11 a. the duration of the alleged violent incident,

12 b. whether the alleged violent incident involved serious
13 physical injury,

14 c. whether the alleged violent incident involved sexual
15 assault,

16 d. whether the alleged violent incident involved
17 strangulation,

18 e. whether the alleged violent incident involved abuse
19 during the pregnancy of the alleged victim,

20 f. whether the alleged violent incident involved the
21 abuse of pets, or

22 g. whether the alleged violent incident involved forcible
23 entry to gain access to the alleged victim;

24

1 8. Whether a separation of the person from the alleged victim
2 or a termination of the relationship between the person and the
3 alleged victim has recently occurred or is pending;

4 9. Whether the person has exhibited obsessive or controlling
5 behaviors toward the alleged victim including, but not limited to,
6 stalking, surveillance, or isolation of the alleged victim;

7 10. Whether the person has expressed suicidal or homicidal
8 ideations; and

9 11. Any information contained in the complaint and any police
10 reports, affidavits, or other documents accompanying the complaint.

11 C. A person arrested for:

12 1. A violation of an ex parte or final protective order as
13 provided in Sections 60.2 and 60.3 of this title;

14 2. An act constituting domestic abuse, domestic assault and
15 battery, or domestic assault and battery with a deadly weapon as
16 specified in Section 644 of Title 21 of the Oklahoma Statutes; or

17 3. An act constituting domestic abuse, stalking, or harassment
18 as defined by Section 60.1 of this title,
19 shall not be eligible for a personal recognizance bond pursuant to
20 Section 1108.1 of this title.

21 D. No police officer or sheriff may release a person arrested
22 for any violation of subsection G of Section 2-401 of Title 63 of
23 the Oklahoma Statutes, without the violator appearing before a
24 magistrate, judge, or court. In determining bond and other

1 conditions of release, the magistrate, judge, or court shall
2 consider any evidence that the person is in any manner dependent
3 upon a controlled dangerous substance or has a pattern of regular,
4 illegal use of any controlled dangerous substance. A rebuttable
5 presumption that no conditions of release on bond would assure the
6 safety of the community or any person therein shall arise if the
7 state shows by clear and convincing evidence:

8 1. The person was arrested for a violation of subsection G of
9 Section 2-401 of Title 63 of the Oklahoma Statutes, relating to
10 manufacturing or attempting to manufacture a controlled dangerous
11 substance, or possessing any of the substances listed in subsection
12 G of Section 2-401 of Title 63 of the Oklahoma Statutes with the
13 intent to manufacture a controlled dangerous substance; and

14 2. The person is in any manner dependent upon a controlled
15 dangerous substance or has a pattern of regular illegal use of a
16 controlled dangerous substance, and the violation referred to in
17 paragraph 1 of this subsection was committed or attempted in order
18 to maintain or facilitate the dependence or pattern of illegal use
19 in any manner.

20 E. No police officer or sheriff may release a person arrested
21 for a second or subsequent violation of Section 11-902 of Title 47
22 of the Oklahoma Statutes, without the granting of bail by a
23 magistrate, court, judge, or on-call judge, whether by telephone or
24 in person. In determining bond and other conditions of release, the

1 magistrate, judge, on-call judge, or court shall consider any
2 evidence that the person is in any manner dependent upon alcohol or
3 a controlled dangerous substance or has a pattern of regular abuse
4 of alcohol or the illegal use of any controlled dangerous substance.
5 If the person was arrested for any crime provided for in Section 11-
6 902 of Title 47 of the Oklahoma Statutes, the court shall consider
7 the threat the person poses to the public safety and shall present
8 written findings on the bail amount. In addition, the person may,
9 at the discretion of the court, be required to use an ignition
10 interlock device as provided by subparagraph n of paragraph 1 of
11 subsection A of Section 991a of Title 22 of the Oklahoma Statutes as
12 a condition of bail.

13 SECTION 2. This act shall become effective November 1, 2026.

14
15 COMMITTEE REPORT BY: COMMITTEE ON JUDICIARY AND PUBLIC SAFETY
16 OVERSIGHT, dated 04/16/2026 - DO PASS, As Amended.
17
18
19
20
21
22
23
24